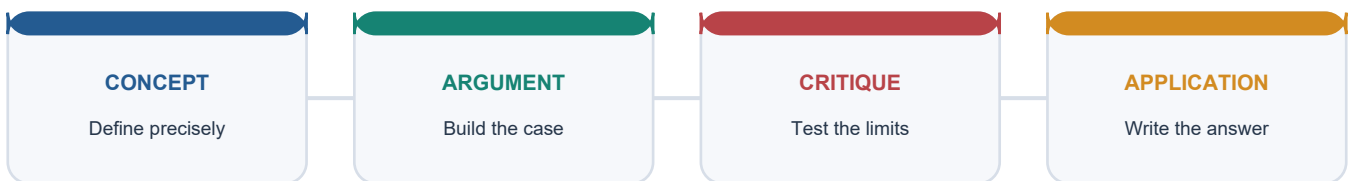


SOLVED PRACTICE WORKBOOK

UPSC and SPSC - Solved Practice Workbook

Solved Practice Workbook

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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UPSC AND SPSC - SOLVED PRACTICE WORKBOOK

WORKBOOK CONTROL

- Exactly 32 original MCQs appear before PYQs.
- Correct-key sequence is ABCD repeated eight times.
- Every MCQ has four option-specific explanations and one unique examiner trap.
- No direct recent PSC PYQ is fabricated; verified adjacent Mains questions are labelled as such.
- UPSC publishes no official descriptive Mains answer key; all model solutions are original.
- Original Mains practice contains exactly six models: two 10-mark, two 15-mark and two 20-mark answers.

BASIC MCQS / REMEDIATION

32 ORIGINAL MCQS - STRICT KEY SEQUENCE ABCD x 8

MCQ 1

Article 315(1) establishes which baseline?

A. A Union Commission and a Public Service Commission for each State, subject to Article 315 B. One national Commission for all Union and State services C. A Joint Commission for every pair of neighbouring States D. Only a Union Commission, with State bodies left to ordinary law

Answer: A.

Option-by-option explanation

- **A:** This states the constitutional Union-State baseline while preserving Article 315's cooperative alternatives.
- **B:** This erases the distinct State Commission required by the constitutional design.
- **C:** This converts an optional consent-based arrangement into an automatic rule.
- **D:** This ignores the express constitutional establishment of State Commissions.

Examiner trap 1: Article 315 creates more than one institutional form; do not collapse the federal map into UPSC.

MCQ 2

A Joint State Public Service Commission can be brought into existence through:

A. a common executive order signed by participating Governors B. resolutions of the concerned State legislatures followed by a law of Parliament C. an agreement between the UPSC and the Chief Ministers D. a recommendation of the Inter-State Council accepted by the President

Answer: B.

Option-by-option explanation

- **A:** This lacks both the legislative resolutions and parliamentary law required by Article 315(2).
- **B:** This reproduces the consent trigger and creating instrument specified in Article 315(2).
- **C:** This confuses a Joint Commission with UPSC assistance under Article 315(4).
- **D:** This assigns a constitutional role to the Inter-State Council that Article 315 does not provide.

Examiner trap 2: State consent initiates the route, but Parliament supplies the creating law.

MCQ 3

Under Article 315(4), UPSC may agree to serve the needs of a State when there is:

A. a request by the Chief Minister and approval of Parliament B. a request by the State legislature and consent of UPSC alone C. a request by the Governor and approval of the President D. a direction by the President without UPSC agreement

Answer: C.

Option-by-option explanation

- **A:** This substitutes political and legislative actors not named in clause (4).
- **B:** This omits Presidential approval and uses the wrong requesting institution.
- **C:** This correctly combines gubernatorial request, Presidential approval and UPSC agreement.
- **D:** This overlooks that the Commission agrees to serve; the arrangement is not a unilateral direction.

Examiner trap 3: UPSC serving one State is not the same device as creating a Joint PSC.

MCQ 4

Article 320(2) is best distinguished from Article 315(2) because it concerns:

A. permanent merger of two SPSCs B. appointment of Joint PSC members C. UPSC taking over all functions of a State Commission D. UPSC assistance to requesting States in a joint recruitment scheme for specially qualified services

Answer: D.

Option-by-option explanation

- **A:** This invents a merger not contemplated by clause (2).
- **B:** This belongs to the Joint Commission architecture under Articles 315-316.
- **C:** This overstates a specialised assistance function into total institutional substitution.
- **D:** This accurately identifies the joint-scheme duty and its special-qualification condition.

Examiner trap 4: Common recruitment and a common Commission are constitutionally different.

MCQ 5

Who appoints the Chair and members of the UPSC and a Joint PSC?

A. The President B. The Prime Minister C. Parliament D. The Chief Justice of India

Answer: A.

Option-by-option explanation

- **A:** Article 316(1) assigns both Union and Joint Commission appointments to the President.
- **B:** Political advice does not replace the formal constitutional appointing authority.
- **C:** Parliament may enact a Joint Commission law but does not make individual appointments.
- **D:** The Chief Justice has no appointing role under Article 316.

Examiner trap 5: Creating law and appointing authority must be answered separately.

MCQ 6

The Article 316 experience rule requires that:

A. every member must have ten years in an All-India Service B. as nearly as may be one-half of the members must have held government office for at least ten years C. the Chair alone must have ten years of judicial office D. exactly half the members must be retired civil servants

Answer: B.

Option-by-option explanation

- **A:** This narrows qualifying service beyond the constitutional text.

- **B:** This correctly states both the approximate fraction and the minimum period.
- **C:** This invents a Chair-specific judicial qualification.
- **D:** This changes 'as nearly as may be' and 'held office' into a rigid retired-civil-servant quota.

Examiner trap 6: The Constitution fixes an experience mix, not a complete professional profile.

MCQ 7

Which Article 316 age pairing is correct?

- A. UPSC 62; SPSC 65; Joint PSC 65 B. UPSC 65; SPSC 62; Joint PSC 65 C. UPSC 65; SPSC 62; Joint PSC 62 D. UPSC 62; SPSC 62; Joint PSC 65

Answer: C.

Option-by-option explanation

- **A:** This reverses the Union and State ceilings and also misstates the Joint ceiling.
- **B:** This is the tempting error that groups the President-appointed Joint Commission with UPSC.
- **C:** This follows the exact text: 65 only for Union, 62 for State and Joint.
- **D:** This incorrectly lowers the Union ceiling and raises the Joint ceiling.

Examiner trap 7: Appointment by the President does not give Joint PSC members the UPSC age ceiling.

MCQ 8

An SPSC member resigns by writing addressed to the:

- A. President B. Chief Minister C. State legislature D. Governor

Answer: D.

Option-by-option explanation

- **A:** The President is the final removal authority, not the SPSC resignation addressee.
- **B:** The Chief Minister is not named by Article 316(2)(a).
- **C:** The State legislature has no role in receiving an individual resignation.
- **D:** The Governor is the correct addressee for a State Commission member.

Examiner trap 8: For an SPSC, resignation goes to the Governor but removal remains with the President.

MCQ 9

If the UPSC Chair is unable to perform duties, the acting arrangement is made by:

- A. the President appointing another member to perform the duties B. automatic succession by the senior-most member C. the Cabinet Secretary nominating a retired member D. a resolution of both Houses

Answer: A.

Option-by-option explanation

- **A:** This reflects Article 316(1A)'s Presidential acting appointment.
- **B:** Seniority may influence practice but is not the constitutional rule.
- **C:** A civil servant has no Article 316 appointment power.
- **D:** Parliament has no acting-Chair role under this clause.

Examiner trap 9: Never convert a possible seniority practice into constitutional text.

MCQ 10

After expiry of a PSC member's term, Article 316(3) makes the person:

A. ineligible for every constitutional office B. ineligible for reappointment to that same office C. eligible for one automatic extension D. eligible only if the legislature approves

Answer: B.

Option-by-option explanation

- **A:** This is wider than the clause and ignores Article 319's permitted progressions.
- **B:** This states the exact same-office reappointment bar.
- **C:** This contradicts the express ineligibility after term expiry.
- **D:** This invents a legislative waiver absent from Article 316.

Examiner trap 10: Read the same-office bar with, not instead of, Article 319.

MCQ 11

Which statement correctly distinguishes Article 317 removal routes?

A. Every ground requires a Supreme Court inquiry. B. The Governor may finally remove an SPSC member for incapacity. C. Misbehaviour requires Supreme Court inquiry, while clause (3) contains direct Presidential grounds. D. Parliament removes a Joint PSC member by special majority.

Answer: C.

Option-by-option explanation

- **A:** This overlooks the insolvency, outside-employment and infirmity route in clause (3).
- **B:** This confuses the Governor's limited suspension power with final removal.
- **C:** This correctly separates the inquiry route from the direct Presidential grounds.
- **D:** This imports a legislative removal mechanism not found in Article 317.

Examiner trap 11: Do not apply the Supreme Court inquiry to every ground or omit it for misbehaviour.

MCQ 12

Pending an Article 317(1) reference concerning an SPSC member, who may suspend the member?

A. The President alone B. The Supreme Court C. The State legislature D. The Governor

Answer: D.

Option-by-option explanation

- **A:** This is correct for Union/Joint suspension but not for the State Commission clause.
- **B:** The Court conducts the inquiry; it does not issue the constitutional suspension order.
- **C:** The legislature has no suspension power under Article 317(2).
- **D:** The Governor is the express interim authority for an SPSC after reference.

Examiner trap 12: Governor suspension is temporary; Presidential removal remains final.

MCQ 13

Which is a direct ground under Article 317(3)?

A. Adjudged insolvency B. An adverse annual report C. Failure to accept government advice D. A legislative no-confidence motion

Answer: A.

Option-by-option explanation

- **A:** Adjudged insolvency is one of the three objective grounds named in clause (3).
- **B:** An adverse report may trigger scrutiny but is not a constitutional ground by itself.

- **C:** A Commission may disagree with government without attracting this removal clause.
- **D:** No-confidence has no place in PSC tenure.

Examiner trap 13: Clause (3) grounds are insolvency, paid outside employment and qualifying infirmity.

MCQ 14

Article 317(4) treats a PSC member as guilty of misbehaviour when the member:

A. criticises a recruitment rule B. has the prohibited interest or participation in specified government contracts or benefits C. recommends fewer candidates than vacancies D. submits an annual report late

Answer: B.

Option-by-option explanation

- **A:** Legitimate institutional criticism is not a deemed ground.
- **B:** This captures the conflict-of-interest deeming rule, subject to the incorporated-company qualification.
- **C:** Recommendation numbers may need reasons but are not automatically deemed misbehaviour.
- **D:** Delay is not the contractual conflict identified in clause (4).

Examiner trap 14: The contract-interest clause is a constitutional conflict rule, not a general performance code.

MCQ 15

Article 318 permits the competent executive authority to regulate:

A. only the Chair's salary B. only the Commission's examination syllabus C. member number/conditions and staff number/conditions D. judicial review of selections

Answer: C.

Option-by-option explanation

- **A:** The Article covers wider member and staff architecture.
- **B:** Syllabi may arise elsewhere; Article 318 concerns institutional conditions and staffing.
- **C:** This accurately states both branches of the regulation power.
- **D:** Judicial review belongs to constitutional courts, not Article 318 regulations.

Examiner trap 15: The disadvantage proviso protects member conditions after appointment, not every staff condition forever.

MCQ 16

Which statement about a former UPSC Chair is correct under Article 319?

A. The person may chair an SPSC. B. The person may become a Union Secretary. C. The person may accept State government employment. D. The person is ineligible for further employment under the Union or a State government.

Answer: D.

Option-by-option explanation

- **A:** An SPSC chairmanship is not a permitted route for the former Union Chair.
- **B:** A Union Secretaryship is ordinary government employment and is barred.
- **C:** State government employment is equally barred.
- **D:** This states Article 319(a)'s strict post-office rule.

Examiner trap 16: The strongest Article 319 bar applies to the UPSC Chair, not identically to all members.

MCQ 17

A former SPSC Chair may constitutionally be appointed as:

A. UPSC Chair/member or Chair of another SPSC B. a member of the same SPSC C. any State Chief Secretary D. any public-sector enterprise head

Answer: A.

Option-by-option explanation

- **A:** These are the permitted PSC progressions under Article 319(b).
- **B:** Same-SPSC membership is not listed and conflicts with the same-office concern.
- **C:** Chief Secretary is ordinary government employment outside the permitted route.
- **D:** A public-sector post cannot be assumed outside the government-employment bar.

Examiner trap 17: An SPSC Chair may move upward or across only through the offices exactly named.

MCQ 18

A former UPSC member other than the Chair may become:

A. an ordinary SPSC member B. UPSC Chair or Chair of an SPSC C. a Union Minister by virtue of Article 319 D. a departmental consultant automatically

Answer: B.

Option-by-option explanation

- **A:** Article 319(c) permits an SPSC chairmanship, not ordinary membership.
- **B:** This is the complete permitted PSC route for a former UPSC member.
- **C:** Political office is not created by Article 319 and needs separate analysis.
- **D:** No automatic consultancy exception exists.

Examiner trap 18: UPSC member -> SPSC Chair is allowed; UPSC member -> SPSC member is not listed.

MCQ 19

A former SPSC member other than the Chair is eligible for:

A. only Chair of the same SPSC B. only an ordinary UPSC membership C. UPSC Chair/member or Chair of the same/another SPSC D. any government employment after a cooling-off period

Answer: C.

Option-by-option explanation

- **A:** This omits Union Commission and another-State chairmanship routes.
- **B:** This excludes chair positions expressly permitted by Article 319(d).
- **C:** This accurately reproduces the broadest PSC progression clause.
- **D:** The Constitution contains no cooling-off exception to the bar.

Examiner trap 19: Article 319(d) is broader than the route for a former UPSC member.

MCQ 20

Article 322 directly provides that:

A. all recruitment expenditure is voted annually B. Joint PSC expenses are always charged on the Consolidated Fund of India C. only member pensions are charged D. UPSC expenses are charged on the Consolidated Fund of India and SPSC expenses on the State Consolidated Fund

Answer: D.

Option-by-option explanation

- **A:** This contradicts the charged-expenditure protection.

- **B:** This overstates the text; Joint Commission finance also requires its creating-law analysis.
- **C:** Salaries, allowances, pensions and staff/Commission expenses are not reduced to pensions alone.
- **D:** This correctly states the express Union-State charging rule.

Examiner trap 20: Do not assign Joint PSC finance to the Union fund without checking Article 315(3) law.

MCQ 21

The core duty stated in Article 320(1) is to:

A. conduct examinations for appointments to the respective Union or State services B. make final appointments to every civil post C. frame all service conditions under Article 309 D. decide service disputes

Answer: A.

Option-by-option explanation

- **A:** This reproduces the examination duty in clause (1).
- **B:** Final appointment belongs to the competent government under governing rules.
- **C:** Rule-making rests with the legislature/executive framework, not this examination duty.
- **D:** Service disputes belong to tribunals and courts.

Examiner trap 21: Examination is a duty; appointment remains a separate legal act.

MCQ 22

Article 320(3)(b) includes consultation on:

A. criminal investigation methods B. principles for appointments, promotions and transfers and candidate suitability C. reservation policy formulation under Article 16(4) D. election of service associations

Answer: B.

Option-by-option explanation

- **A:** Criminal-investigation design falls outside the consultation catalogue.
- **B:** This states the career-movement and suitability branch accurately.
- **C:** Reservation manner is excluded from required consultation by Article 320(4).
- **D:** Service-association elections are not a constitutional consultation subject.

Examiner trap 22: Recruitment methods under clause (a) and appointment principles under clause (b) are separate.

MCQ 23

Which often-overlooked matter is expressly included in Article 320(3)?

A. allocation of tax revenue B. recognition of political parties C. a qualifying official-duty legal-cost claim D. delimitation of constituencies

Answer: C.

Option-by-option explanation

- **A:** Tax distribution belongs to fiscal federalism, not PSC consultation.
- **B:** Party recognition belongs to election law and the ECI field.
- **C:** This is expressly included, along with specified injury-pension claims.
- **D:** Delimitation uses a separate statutory-constitutional framework.

Examiner trap 23: Legal-cost and injury-pension claims are high-value close-option facts.

MCQ 24

Article 320(4) means PSC consultation is not required on:

A. every reserved vacancy selection B. all appointments involving an SC/ST candidate C. all equality questions under Article 14 D. the manner of giving effect to Article 16(4) and Article 335 claims

Answer: D.

Option-by-option explanation

- **A:** This wrongly converts policy non-consultation into non-administration of reservation.
- **B:** This would exclude individuals rather than the specified policy matters.
- **C:** This is far broader than the constitutional text.
- **D:** This states the two express exclusions.

Examiner trap 24: A PSC can administer reservation rules although reservation policy is outside mandatory consultation.

MCQ 25

Regulations excluding matters from Article 320(3) consultation must be:

A. laid before the appropriate legislature, which may modify them under the constitutional procedure B. approved by the Supreme Court before notification C. identical for the Union and every State D. treated as constitutional amendments

Answer: A.

Option-by-option explanation

- **A:** This reflects the proviso's legislative-laying accountability.
- **B:** The Constitution does not require prior judicial approval.
- **C:** This ignores separate Union and State regulation-making and legal variation.
- **D:** Delegated constitutional regulation is not an Article 368 amendment.

Examiner trap 25: Never universalise Union exemption schedules across SPSCs.

MCQ 26

Article 321 allows additional PSC functions to be conferred by:

A. executive circular alone B. an Act of Parliament or the State legislature, as applicable C. a judgment selecting new recruitment fields D. an annual report under Article 323

Answer: B.

Option-by-option explanation

- **A:** An executive circular lacks the legislative instrument expressly required.
- **B:** This is the competent route and can extend functions to specified public bodies.
- **C:** Courts review legality but do not ordinarily legislate new Commission functions.
- **D:** A report records work; it does not enlarge jurisdiction.

Examiner trap 26: Article 321 extension is legislative, not an implication from administrative practice.

MCQ 27

Article 323 requires the annual report and non-acceptance memorandum to be placed before:

A. the Supreme Court B. the Commission's own secretariat C. the appropriate legislature D. the Inter-State Council

Answer: C.

Option-by-option explanation

- **A:** Courts may review disputes but do not receive the constitutional report package.
- **B:** Secretariat custody is not the final accountability destination.
- **C:** Parliament receives the UPSC package and the relevant State legislature receives State/Joint reporting.
- **D:** The Inter-State Council has no Article 323 role.

Examiner trap 27: A Joint Commission reports State-wise through each served State's Governor.

MCQ 28

The rule in *State of U.P. v Manbodhan Lal Srivastava* (1957) is that:

A. PSC advice binds the disciplinary authority B. every non-consultation voids the final order C. consultation creates a fundamental right to appointment D. Article 320(3)(c) consultation is directory and non-consultation alone does not create an individual right or invalidate action

Answer: D.

Option-by-option explanation

- **A:** This contradicts the decision's advisory understanding.
- **B:** This automatic-invalidity rule was rejected.
- **C:** This confuses consultation with a candidate's appointment entitlement.
- **D:** This states the narrow holding without immunising arbitrary action.

Examiner trap 28: Directory does not mean government may violate service rules or equality.

MCQ 29

Jatinder Kumar v State of Punjab (1984) is most relevant for the proposition that:

A. selection/recommendation does not itself compel appointment B. PSC members may be removed by a Governor C. interviews are constitutionally prohibited D. Article 323 reports are binding votes

Answer: A.

Option-by-option explanation

- **A:** This captures the advisory recommendation and government appointment role.
- **B:** This contradicts Article 317's Presidential removal rule.
- **C:** Interviews remain permissible subject to fairness and notified rules.
- **D:** Reporting accountability does not become legislative appointment power.

Examiner trap 29: Recommendation is not appointment, but government discretion remains bounded by non-arbitrariness.

MCQ 30

Ashok Kumar Yadav v State of Haryana (1985) chiefly supplies which PSC safeguard?

A. automatic appointment from a select list B. recusal against reasonable likelihood of bias and scrutiny of disproportionate interview weight C. complete judicial re-marking of candidates D. a ban on expert interviews for civil services

Answer: B.

Option-by-option explanation

- **A:** Select-list inclusion does not create automatic appointment.

- **B:** This accurately states the natural-justice and interview-design principles.
- **C:** Such re-marking would turn judicial review into appellate selection.
- **D:** The judgment regulates, rather than abolishes, a legitimate assessment method.

Examiner trap 30: Bias control is member/candidate specific; remedy and systemic effect require separate analysis.

MCQ 31

Which allocation of roles is constitutionally and administratively sound?

A. UPSC investigates vigilance allegations, CVC appoints, department recommends B. SSC frames Article 309 rules, UPSC allocates cadres, CAT conducts examinations C. department/DoPT owns rules and appointment; PSC advises/selects where assigned; CVC/CVO handles covered vigilance; tribunals/courts review legality D. SPSC determines national reservation policy and the Governor removes its members

Answer: C.

Option-by-option explanation

- **A:** This reverses investigation, advice and appointment functions.
- **B:** This assigns every institution a function it does not generally own.
- **C:** This correctly separates personnel, recruitment, vigilance and adjudicatory stages.
- **D:** This gives an SPSC policy and removal powers the Constitution does not confer.

Examiner trap 31: Map the stage before comparing institutional status.

MCQ 32

Which statement on examination-integrity law is correct?

A. The 2024 central Act automatically governs every SPSC examination. B. A paper leak is only a criminal-law issue, never a selection-law issue. C. Technology removes the need for reasoned candidate remedies. D. UPSC examinations are expressly within the central 2024 framework, while SPSC coverage requires checking applicable law and notification.

Answer: D.

Option-by-option explanation

- **A:** This universalises a central statutory schedule across State systems.
- **B:** This ignores recruitment validity, equality and natural-justice consequences.
- **C:** This treats a tool as a substitute for accountable institutional decision-making.
- **D:** This states the institution-specific legal boundary and preserves separate selection remedies.

Examiner trap 32: Do not use 'paper leak' as a slogan; identify the exam authority, applicable statute and remedy.

PYQS AND ANSWER PRACTICE

VERIFIED PYQ ROUTING AND OFFICIAL-KEY DISCIPLINE

- The repository's official-paper/routing audit for 2018-2026 contains no direct standalone Prelims or GS-II question on Articles 315-323. No year, wording, option set or official key is invented.
- The two questions below are verified adjacent Mains questions from official UPSC papers. They are labelled adjacent because they test the civil-service system rather than the PSC chapter alone.
- UPSC does not publish an official answer key for descriptive Mains papers. The model solutions are original, not official answers.

VERIFIED ADJACENT PYQ 1 - UPSC CSE MAINS 2020, GS-II

"Institutional quality is a crucial driver of economic performance." In this context suggest reforms in Civil Service for strengthening democracy.

Demand route. Connect merit recruitment and PSC integrity with wider civil-service professionalism, capacity, accountability and citizen orientation; do not make UPSC the owner of all reform.

Model solution. Institutional quality converts public authority into predictable, competent and rights-respecting administration. Recruitment through independent PSCs is the entry safeguard, but democratic performance also requires lawful political control, professional capacity and public accountability. Transparent recruitment rules, timely examinations and conflict-free interviews strengthen merit and equal opportunity. Fixed tenure in sensitive posts, recorded directions and protection against arbitrary transfers support impartial advice. Mission-oriented training, domain expertise and carefully governed lateral recruitment can improve capability, provided open criteria, reservation/equality duties and conflict controls are preserved. Digital service delivery should be paired with audit trails, privacy safeguards and accessible grievance redress. CVC/CVO vigilance, departmental discipline, legislative oversight, audit and judicial review should operate as distinct but coordinated checks. The qualification is that autonomy cannot become bureaucratic insulation: elected governments must retain policy control and officials must remain answerable for outcomes. Reform therefore means a merit-based, representative, competent and correctable civil service, not merely a larger examination system.

VERIFIED ADJACENT PYQ 2 - UPSC CSE MAINS 2025, GS-I, Q9

"The ethos of civil service in India stands for the combination of professionalism with nationalistic consciousness." Elucidate.

Demand route. Define both elements, connect constitutional recruitment to impartial capacity, and distinguish constitutional patriotism from partisan loyalty.

Model solution. Professionalism means competence, integrity, political neutrality, reasoned procedure and service to citizens. Nationalistic consciousness means commitment to India's constitutional unity, pluralism, dignity and developmental transformation, not loyalty to a government or party. PSC-based open recruitment supports professionalism by reducing patronage and standardising entry; Articles 14 and 16 require equal opportunity and lawful representativeness. After appointment, Articles 309-311, conduct rules, training and accountability institutions shape official behaviour. The two elements reinforce each other when expertise is used to deliver rights and public goods across regions and communities. They diverge when 'national interest' is invoked to excuse illegality, suppress dissent or reward partisan compliance. The sound civil servant is therefore professionally independent in advice, democratically accountable in execution and constitutionally patriotic in purpose.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

ORIGINAL MAINS 1 - Explain the differentiated removal and suspension scheme for PSC members. (10 marks, 150 words)

Model solution. Article 317 centralises final removal in the President but separates grounds and interim authority. For misbehaviour, the President must refer the matter to the Supreme Court; after inquiry under the Article 145 procedure, the Court reports whether the member ought to be removed. *In re Mehar Singh Saini* (2010) shows this route operating against proved manipulation and loss of integrity. Clause (3) separately permits Presidential removal for adjudged insolvency, paid outside employment, or infirmity making the member unfit. Clause (4) deems prohibited government-contract interest to be misbehaviour. After a reference, the President may suspend a UPSC or Joint Commission member, while the Governor may suspend an SPSC member. The qualification is crucial: the Governor never finally removes an SPSC member, and Parliament's judicial-impeachment process is irrelevant. The design protects against retaliatory dismissal while preserving accountability for incapacity, conflict and grave abuse.

ORIGINAL MAINS 2 - Why is PSC advice non-binding yet constitutionally consequential? (10 marks, 150 words)

Model solution. Article 320 creates expert consultation, not a transfer of executive responsibility. PSC advice covers recruitment methods, appointment/promotion/transfer principles and suitability, discipline, legal-cost claims and injury pensions. In *State of U.P. v Manbodhan Lal Srivastava* (1957), the Supreme Court held Article 320(3)(c) directory: non-consultation alone does not invalidate action or create an individual right. *Jatinder Kumar* (1984) similarly shows that recommendation does not itself compel appointment. Yet the advice remains consequential. It supplies an independent record, strengthens consistency and exposes departmental self-interest. Article 323 requires annual reports and a memorandum explaining cases and reasons of non-acceptance before the legislature. Valid exemption regulations may narrow consultation, but arbitrariness, mala fides and breach of recruitment rules remain reviewable. Thus PSC influence is persuasive and publicly accountable rather than coercive.

ORIGINAL MAINS 3 - Compare UPSC, SPSC and Joint PSC as federal recruitment institutions. (15 marks, 250 words)

Model solution. The three bodies share the Articles 315-323 framework but differ in source, appointment and territorial design. Article 315(1) directly establishes the Union Commission and a Commission for each State. A Joint PSC is not automatic: concerned State legislatures pass resolutions and Parliament creates the common body by law under Article 315(2)-(3). The President appoints UPSC and Joint Commission members; the Governor appoints SPSC members. As nearly as may be, half of every Commission must have ten years' government-office experience. The term is six years subject to age 65 for UPSC and 62 for SPSC and Joint members. Final removal of all members belongs to the President. Misbehaviour requires a Supreme Court inquiry; after reference, the Governor alone has interim suspension power for an SPSC member. Article 320 gives examination and consultation functions, while Article 315(4) separately permits UPSC to serve a State on gubernatorial request, Presidential approval and UPSC agreement. Article 323 makes a Joint Commission report State-wise to each served State's Governor. The common design combines uniform independence safeguards with differentiated federal ownership. Its limit is operational: appointment opacity, vacancies and staff dependence can weaken any of the three despite formal protection.

ORIGINAL MAINS 4 - Examine how reservation, lateral entry and consultation exclusions fit within the PSC system. (15 marks, 250 words)

Model solution. PSCs administer recruitment within constitutional and notified rules; they do not own reservation policy or every hiring method. Article 320(4) removes mandatory PSC consultation on the manner of giving effect to Article 16(4) and on Article 335 claims. This does not exclude reserved candidates or vacancies from PSC examinations. Government frames the roster and recruitment rules; the Commission applies them in the process assigned to it. The proviso to Article 320(3) permits the President or Governor to make exemption regulations, subject to legislative laying. At Union level, G.S.R. 203(E) of 15 March 2024 amended a Schedule entry for specified Group A and Group B posts up to level 13A filled by deputation/re-employment, short-term contract, absorption or a composite method. It is not a universal constitutional exemption called lateral entry. Each lateral or contract hire therefore requires a post-specific audit: legal source, recruitment method, equality and reservation obligations, consultation rule, transparent notice, conflict controls and competent appointment. States may have different regulations. The balanced position is neither PSC monopoly nor executive freedom; expertise-based hiring remains lawful only when constitutional equality and accountable procedure travel with it.

ORIGINAL MAINS 5 - Evaluate PSC independence and propose institution-specific reforms. (20 marks, 250 words)

Model solution. PSC independence protects equal opportunity and administrative competence from patronage. Article 317 centralises final removal in the President and requires Supreme Court inquiry for misbehaviour. Article 318 bars disadvantageous variation of a member's service conditions after appointment. Article 319 restricts post-office government employment, and Article 322 charges Union/State Commission expenditure on the appropriate Consolidated Fund. Article 323 exposes rejected advice through reports and reasons. *Mehar Singh Saini* (2010) adds that independence, impartiality and integrity are basic to the office and that grave manipulation can justify removal.

Formal safeguards do not guarantee operational autonomy. Executive-dominated appointments, delayed vacancies, dependence on government staff, opaque interviews, vendor capture, slow results and weak legislative examination of reports can erode credibility. SPSC experience varies, so one State scandal or rule must not be nationalised. Reform

should publish objective appointment criteria, use a broad and recorded search process, fill vacancies on a calendar, professionalise secretariats, require conflict disclosure and recusal, audit digital and paper custody, publish reasoned result/grievance protocols and strengthen scrutiny of Article 323 memoranda. Courts should review illegality and bias without re-ranking candidates. Independence must mean lawful capacity plus transparent correction, not isolation from government, legislature or court.

ORIGINAL MAINS 6 - "Merit, representativeness and procedural fairness are complementary, not competing, goals of public recruitment." Discuss. (20 marks, 250 words)

Model solution. Merit is fitness for public responsibility, not merely the highest raw score. Representativeness ensures that historically excluded groups can access State institutions under the equality code. Procedural fairness makes both claims credible through announced rules, impartial assessment and reviewable reasons. Articles 14 and 16 provide the normative frame; Articles 315-323 create independent PSC machinery. Article 320(4) leaves reservation policy to the constitutional-governmental domain, while PSCs apply the notified roster and eligibility rules in assigned selections.

The three goals reinforce each other. Wider access enlarges the talent pool; reasonable accommodation prevents irrelevant barriers; transparent criteria make competence measurable; diverse services improve legitimacy and contextual understanding. Conflict arises when 'merit' is reduced to one exam technique, when representativeness is implemented without roster clarity, or when criteria change after applications. *Ashok Kumar Yadav* (1985) supplies bias and interview safeguards; *K. Manjusree* (2008) and *Tej Prakash Pathak* (2024) protect rule stability and non-arbitrariness. Government must still justify the post, qualifications and appointment, while courts review legality rather than choose the best candidate. Sound recruitment combines open competition, constitutional inclusion, post-relevant assessment, recusal, audit trails and timely remedies. A process is meritorious only when competence is selected through equal and fair rules.